

Housing

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- One public list. Everyone can see their place on it.
- Points only for set reasons, like time waiting and overcrowding.
- Offers in writing. No promises made out loud.
- Same charge for the same kind of unit.
- Nobody gets locked out without notice, time to pay, and a hearing.

Why this draft is here

Housing is where favouritism hurts most. A public list with fixed points means every member can see where they stand and why.

1. Purpose and land

- 1.1 This code sets one waiting list, a written offer, and the steps before anyone loses a unit. It does not transfer land.
- 1.2 Under Indian Act subsection 20(1), lawful possession of reserve land needs an allotment by council approved by the Minister. A housing allocation under this code is a right to live in a unit on the conditions written here. It is not a certificate of possession.
- 1.3 Council must not use this code to surrender or lease reserve land.

2. The list

- 2.1 There is one list for rental units the First Nation assigns. The housing officer posts it, showing each applicant's file number, points, and application date, and updates it within 14 days of any change. Names are not posted.
- 2.2 A unit given to anyone other than the next eligible person on the list is void. The person who made that assignment may not make housing decisions for the rest of the term. The appeal body posts the void assignment within 7 days.

2.3 Points are given only for these reasons:

Reason	Points	Proof
Time on the list	1 point for each full year, up to 10	Application date on file
Overcrowding	5 points if more than 2 people per bedroom	Written count signed by the applicant
Health or accessibility need	5 points	Letter from a licensed health professional, dated within 180 days
Elder, 60 or older	3 points	Date of birth on file
No unit from the First Nation now	5 points	Housing file
Arrears with no payment plan in good standing	Minus 5 points	Account statement

2.4 A tie goes to the earlier application date.

2.5 The housing officer makes the offer in writing within 14 days of a unit becoming vacant and gives the applicant 14 days to accept. A promise made out loud is void.

2.6 A member who lives off reserve may apply and stays on the list on the same terms.

3. Charges, repairs, and arrears

3.1 The monthly charge is the amount on the posted schedule adopted with the budget. Nobody on council may set a different charge for one household. A different charge is void, and the posted charge applies from the next month.

3.2 A tenant may report a repair in writing. The housing officer acknowledges it within 3 days. An urgent repair affecting heat, water, power, or safety is dealt with within 2 days. Others are scheduled within 30 days. The housing officer posts a quarterly count of repairs reported and completed.

3.3 When an account is 30 days behind, the housing officer sends a written notice that day. The tenant has 30 days to pay or sign a payment plan.

3.4 No lock is changed unless all of these are true: the notice was sent, the 30 days passed, a hearing was offered on 14 days' notice, and the appeal body confirmed those facts in writing.

3.5 A lock change that skips a step is a breach. The housing officer restores access within 1 day of the appeal body saying so, and the person who ordered it may not make housing decisions for 1 year.

4. Conflicts and appeals

4.1 Anyone on council who is immediate family of an applicant stays out of that file. The file goes to the appeal body, which decides within 30 days.

4.2 An applicant or tenant may appeal any housing decision to the appeal body within 30 days. The appeal body decides within 30 days.

5. Changing this code

- 5.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 5.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 5.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 5.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

6. Review and coming into force

- 6.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 6.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 6.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 6.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 6.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.